EduPulse SMT Confidentiality And NDA Template

Purpose

This is a draft confidentiality and non-disclosure template for use with contributors, advisors, contractors, prospective partners, or other parties given access to EduPulse SMT confidential information. It is a practical drafting aid for counsel, not signed legal advice.

Draft Template

Confidentiality and Non-Disclosure Agreement

This Confidentiality and Non-Disclosure Agreement is made on [Date] between:

1. **EduPulse SMT / [Registered Entity Name]**, of [Address] (the "Disclosing Party")
2. **[Recipient Full Name or Entity]**, of [Address] (the "Receiving Party")

1. Purpose

The Receiving Party may receive confidential information relating to EduPulse SMT for the purpose of [advisory work / development work / partnership evaluation / legal review / commercial discussions].

2. Confidential Information

Confidential Information includes all non-public information relating to EduPulse SMT, including:

1. Source code and software architecture
2. Product roadmap and implementation plans
3. Payment categorization and reconciliation logic
4. Legacy Paystack route-account compatibility structures and historical settlement interpretation methods
5. Cryptographic controls and security architecture
6. Operations playbooks, onboarding materials, incident templates, and school launch materials
7. Pricing, commercial plans, customer strategy, and financial information
8. Business methods, technical know-how, designs, prompts, and draft legal materials

Confidential Information may be written, oral, visual, digital, or inferred from access to systems or repositories.

3. Exclusions

Confidential Information does not include information the Receiving Party can prove:

1. Was already lawfully known without confidentiality duty
2. Becomes public through no breach of this agreement
3. Is lawfully obtained from an independent third party without breach
4. Is independently developed without use of the Disclosing Party's Confidential Information

4. Obligations Of The Receiving Party

The Receiving Party agrees:

1. To use Confidential Information only for the permitted purpose
2. To keep it strictly confidential
3. Not to copy, disclose, publish, reverse engineer, or exploit it except as authorized in writing
4. To limit access to personnel who genuinely need to know and who are bound by equivalent confidentiality obligations
5. To protect it with reasonable security measures at least as strong as those used for the Receiving Party's own sensitive information

5. No License Or Ownership Transfer

Nothing in this agreement grants the Receiving Party ownership of or license to EduPulse SMT intellectual property except the limited right to review the information for the permitted purpose.

6. Return Or Destruction

Upon request or when the relationship ends, the Receiving Party must promptly return or destroy Confidential Information, including copies, extracts, notes, and derivative summaries, except where legal retention is required.

7. Injunctive Relief

The Receiving Party acknowledges that unauthorized disclosure or misuse of Confidential Information may cause irreparable harm to EduPulse SMT for which damages alone may be inadequate. The Disclosing Party may seek injunctive or equitable relief in addition to other remedies.

8. Term

This agreement begins on the date signed. Confidentiality obligations continue for [3-5] years after disclosure, or longer for trade secrets and highly sensitive technical know-how where permitted by law.

9. Governing Law

This agreement is governed by the laws of Ghana, unless counsel determines another governing-law structure is more appropriate for the final signed version.

10. Signatures

For EduPulse SMT / [Registered Entity Name]

Name: _____

Title: _____

Signature: _____

Date: _____

Receiving Party

Name: _____

Title: _____

Signature: _____

Date: _____

Counsel Notes

Counsel may want different variants of this template for:

1. Developers and contractors
2. Advisors and consultants
3. Investors or strategic partners
4. Schools given access to implementation detail beyond normal customer materials